

TENTATIVE RULINGS FOR August 24, 2026.
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

ANN P. JOHN
v.
JACE VARGHESE; VEENA VARGHESE
CIVSB2426754

Motion: **Compel Further re (1) Request for Production of Documents (Set 2), and (2) Requests for Production of Documents (Set 4)**
Movant: (1)-(2) Plaintiff Ann P. John
Respondent: (1) Defendant Veena Varghese, and (2) Defendant Jace Varghese

MOTION

Plaintiff John propounded on April 27, 2026, Requests for Production of Documents, set 2 (RFPs 2), on Defendant Veena, and RFPs, set 4 (RFPs 4) on Defendant Jace. On June 1, 2026, they served objection-only responses. (Exhs. B-C to John's Decls.; Gentile Decl. at ¶¶2-3.)¹ Thereafter, on August 10 and 11, they served Amended and Second Amended Responses. (Gentile Decl. at ¶7, Exh. B.)

Before the amended responses were served, Plaintiff John moved to compel further responses to RFPs 2 from Veena on June 30, 2026, and further responses to RFPs 4 from Jace on July 16, 2026. Defendants Varghese oppose.

DISCUSSIONS

Statement of the Law

A party who deems a statement of compliance with a document demand as incomplete, or the representation of inability to comply as inadequate, incomplete, or evasion, or an objection to a document demand as without merit or too general can move to compel further responses. (Code Civ. Proc., §2031.310, subd. (a).)

¹ Attorney Gentile filed identical declarations in support of each opposition, so the reference to one is a reference to the other.

The motion to compel must be noticed within 45 days of receipt of the responses (plus the additional time if not personally served). (Code Civ. Proc., §2031.310, subd. (c).) The motion must be accompanied by a declaration stating facts “showing a reasonable and good-faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion” before filing the motion. (Code Civ. Proc., §§2016.040, 2031.310, subd. (b)(2).) Additionally, the moving party must set forth facts showing good cause justifying the discovery sought by the demand. (Code Civ. Proc., §2031.310, subd. (b)(1).)

The Court shall impose monetary sanctions against any party, person, or attorney who unsuccessfully makes or opposes a compel further motion unless the court finds that the sanctionable party acted with substantial justification or other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §2031.310, subd. (h).)

Analysis

As Defendants have served amended and second amended responses, the motions are moot. If Plaintiff John remains dissatisfied with the responses served, then she needs to meet and confer in person, by telephone, or by teleconference. If no resolution is reached, then she may file any appropriate compel further motion.

The only issue is whether Plaintiff John is entitled to sanctions. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) Generally, although attorney fees, as discovery sanctions, may not be recovered by a pro per litigant [*Argaman v. Ratan* (1999) 73 Cal.App.4th 1173, 1178-79], the pro per litigant may recover costs incurred, if reasonably identified and allocable, as discovery sanctions [*Leiper v. Gallegos* (2021) 69 Cal.App.5th 284, 288, 297; *Kravitz v. Superior Court (Milner)* (2001) 91 Cal.App.4th 1015, 1020].

Under each Motion, Plaintiff requests \$304.85 for incurred costs. (Exh. K to John Decl. (Veena), Exh. J to John Decl (Jace).) In the meet and confer after the motion was filed, Defense Counsel indicated a willingness to pay said amount in an attempt to compromise the matter. However, before filing the motions, Plaintiff failed to engage in a code-compliant meet and confer, i.e., her meet and confer was via emails only. Yet, the law requires the meet and confer to be in person, by telephone, or by videoconference. Additionally, although the Notice of Motion indicates seeking sanctions, John never identifies against whom, as required by Code of Civil Procedure section 2023.040. Therefore, the Court denies John’s request for sanctions.

Finally, Court denies Defendants request for sanctions as Defendants were not the prevailing party and their failure to timely respond to discovery demands resulted in the subject motions.

RULING

The Court rules as follows:

1. Finds Plaintiff John's Motion to Compel Further Responses to RFPs, set 2, from Defendant Veena is moot.
2. Finds Plaintiff John's Motion to Compel Further Responses to RFPs, set 4, from Defendant Jace moot;
3. Denies Plaintiff John's request for sanctions under both motions; and

Dated: August 24, 2026

Judge Nicole Quintana Winter

HENRIK TAHMASIAN;
v.
CALIFORNIA FAIR PLAN ASSOCIATION
CIVSB2408829

Motion: **Summary Judgment / Summary Adjudication**

Movant: Defendant California Fair Plan Association

Respondents: Plaintiff Henrik Tahmasian

RELEVANT PROCEDURAL/FACTUAL BACKGROUND

This litigation concerns a denied insurance claim. On March 18, 2024, plaintiff Henrik Tahmasian (“Plaintiff”) filed his complaint alleging four causes of action against defendant California Fair Plan Association (“Defendant”) for 1) Breach of Contract; 2) Breach of Implied Covenant of Good Faith and Fair Dealing; 3) Elder Emotion and Financial Abuse; and 4) Declaratory Relief. Plaintiff alleges that he is the owners of real property located at 4206 Plato Street, El Mirage, California (“Subject Property”). (Compl. ¶7.) On or about May 19, 2022, Defendant issued an insurance policy bearing number CFP 280120500 to Plaintiff for the Subject Property, with a policy period of May 20, 2022 to May 20, 2023 (“Policy”). (Compl. ¶8, Ex. A.) On or about October 6, 2022, a fire took place at the Subject Property. (Compl. ¶11.) Plaintiff submitted a claim to Defendant, but his claim was denied. (Compl. ¶¶13-20.)

On June 4, 2026, Defendant filed the current motion for summary judgment/ adjudication. Defendant argues that Plaintiff materially lied when he obtained his insurance policy for the Subject Property, and thus it was within its right to rescind the contract and all claims related to the contract are barred. On August 04, Plaintiff filed a timely opposition, which does not argue that a different legal standard applies, but instead seeks to create triable issue of fact as to whether Plaintiff made misrepresentations in the pursuit of the Policy.

On August 13, Defendant filed its timely reply as well as evidentiary objections.

]
DISCUSSION

I. Statement of the Law.

a. Summary Judgment/Summary Adjudication.

“The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) “Accordingly, the function of the trial court in ruling on a motion for summary judgment is merely to determine whether such issues of fact exist, and not to decide the merits of the issues themselves.” (*Preach v. Monter Rainbow* (1993) 12 Cal.App.4th 1441, 1449-1450.) The analysis required of the trial court consists of three steps:

First, we identify the issues framed by the pleadings. ... Secondly, we determine whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in movant’s favor. ... [T]he third and final step is to determine whether

the opposition demonstrates the existence of a triable, material factual issue.

(*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-65.)

Thus, summary judgment is appropriate when there are no material facts in dispute as to any essential element of a cause of action. (Code Civ. Proc. §437c.) Only the pleadings establish the grounds for granting or denying the summary judgment. (*Tsemetzin v. Coast Federal Savings & Loan Assn.* (1997) 57 Cal.App.4th 1334, 1343.)

A party may alternatively move for summary adjudication as to one or more causes of action, affirmative defense, damages, or issues of duty. (Code Civ. Proc., §437c, subd. (f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, affirmative defense, a claim for damages, or an issue of duty. (*Id.*) A summary adjudication motion may be made by itself, or as an alternative to a summary judgment motion, and is subject to the same rules and procedures as a summary judgment motion. (*Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131; Code Civ. Proc., §437c, subd. (f)(2).)

“However, a party may not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court, unless that party establishes to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion.” (Code Civ. Proc. § 437c, subd. (f)(2).)

The moving party bears the burden to establish that there are no material facts in dispute and that they are entitled to judgment as a matter of law. (*Aguilar, supra*, 25 Cal.4th at 850.) “A plaintiff moving for summary judgment must prove each element of each cause of action.” (*Los Alamitos Unified School Dist. v. Howard Contracting, Inc.* (2014) 229 Cal.App.4th 1222, 1225.) A movant satisfies this burden by showing “one or more elements of the cause of action ... cannot be established, or that there is a complete defense to that cause of action.” (*Aguilar, supra*, 25 Cal.4th at 850.) Once that burden has been met, the burden shifts to the opposing party to produce admissible evidence showing a triable issue of material facts exist. (Code Civ. Proc. §437c, subd. (p)(2); *Aguilar, supra*, 25 Cal.4th at 849-851.) “[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element ... necessary to sustain a judgment in his favor.” (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468). As such, the failure of a party to oppose a motion for summary judgment is not, in and of itself, a sufficient basis for granting the motion as a motion “must stand self-sufficient and cannot succeed because the opposition is weak.” *AARTS Productions, Inc. v. Crocker National Bank, supra*, 179 Cal.App.3d at 1064.)

Procedurally, Code of Civil Procedure section 437c, subdivision (a)(2) requires that a motion for summary judgment be brought on 75 days’ notice, stating “[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 75 days before the time appointed for the hearing.” Further, section 437c, subdivision (b) of the Code of Civil Procedure requires that a motion for summary judgment or summary adjudication “be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken.” Any evidentiary objections not made are deemed waived. (Code Civ. Proc., § 437c, subd. (b)(5), (d).) The Court, additionally, must consider reasonable inferences drawn from the presented evidence. (Code Civ. Proc. §437c; *Mann v. Cracchiolo* (1985) 38 Cal.3d 18, 36.) Declarations and evidence offered in opposition must be liberally construed, while the moving party’s evidence must be construed strictly. (*Sprecher v.*

Adamson Cos. (1981) 30 Cal.3d 358, 373.) Furthermore, a motion for summary adjudication must specifically identify each specific cause of action, affirmative defense, claim of damages or issue of duty to be adjudicated, and repeat each such identification verbatim in the separate statement, even if each item to be adjudicated relies on the same evidence offered to support summary judgment. (Cal. Rules of Court, Rule 3.1350, subd. (b).)

A grant of summary judgment is reviewed under a de novo standard and an appellate court will “decide independently whether the facts not subject to triable dispute warrant judgment for the moving party as a matter of law.” (*TIG Ins. Co. of Michigan v. Homestore, Inc.* (2006) 137 Cal.App.4th 749, 755.)

II. Analysis.

a. Preliminary Issues.

i. Requests for Judicial Notice.

Defendant requests judicial notice their Exhibits A-F and Plaintiff seeks judicial notice of Defendant’s exhibits 16, 21-23. The Court denies both requests.

First, the Court is not required to take judicial notice of any of these documents pursuant to California Evidence Code section 451 because they do not fit the requirement.

Second, “the purpose of judicial notice is to expedite the production and introduction of otherwise admissible evidence.” (*Mozzetti v. City of Brisbane* (1977) 67 Cal.App.3d 565, 578.) Judicial notice is requested of Plaintiff’s complaint and Defendant’s answers (Ex. A-C) – the admissibility of these documents is not in question. Exhibits D-F similarly are not needed for the Court to reach its decision in this matter.

Likewise, exhibits 16, 21-23 do not meet the requirements of California Evidence Code section 452. Further, although they are relevant to this litigation, they are authenticated through the declarations presented.

As such, the Court denies all requests for judicial notice.

Evidentiary Objections.

Defendant objects to several of paragraphs of the declaration of Plaintiff, Dr. Johnny H. Wen, and Irfan Rizvi. “In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes, of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

The Court overrules Defendant’s objections to the declarations of Dr. Wen. These declarations submitted along with Plaintiff’s opposition are not material to the disposition of this motion. In addition, the Court overrules the objections to the declarations of Plaintiff and Mr. Rizvi. Mr. Rizvi bases his opinions on his years of experience in the industry and on his personal experience as the listing agent for the Subject Property. (I. Rizvi Decl. ¶¶3, 9-13.) Similarly, Plaintiff’s declaration reflects his personal experience.

b. Whether Defendant was in its Right to Rescind the Policy, Barring All Related Claims.

Defendant’s primary argument is that it had the right to rescind the insurance contract because Plaintiff obtained by Policy by providing incorrect information.

“Governing law permits an insurer to rescind a policy when the insured has misrepresented or concealed material information in connection with obtaining insurance.” (*TIG Ins. Co. of*

Michigan v. Homestore, Inc., *supra*, 137 Cal.App.4th at 755-756.) Specifically, “[c]oncealment, whether intentional or unintentional, entitles the injured party to rescind insurance.” (Ins. Code, § 331.) The California Insurance Code also states that “[i]f a representation is false in a material point, whether affirmative or promissory, the injured party is entitled to rescind the contract from the time the representation becomes false.” (Ins. Code, § 359.) “Materiality is to be determined not by the event, but solely by the probable and reasonable influence of the facts upon the party to whom the communication is due, in forming his estimate of the disadvantages of the proposed contract, or in making his inquiries.” (Ins. Code, § 334.) Lastly, rescission can be exercised “at any time previous to the commencement of an action on the contract.” (Ins. Code, § 650.)²

As such, the questions before the Court are (1) whether there were misrepresentations that would warrant Defendant’s rescission of the Policy, and (2) whether those misrepresentations were “material to the acceptance of the risk as a matter of law.” (*TIG Ins. Co. of Michigan v. Homestore, Inc.*, *supra*, 137 Cal.App.4th at 762.)

Defendant argues that Plaintiff misrepresented 1) the nature of the property – claiming it was a single-family home when it was actually a multi-family dwelling; 2) that the Subject Property had no pre-existing damage at the time it was insured, when it did, and 3) that Plaintiff misrepresented that he had never been involved in a fire. Although prongs one and three do not necessitate summary judgment in favor of Defendant, Defendant has provided enough evidence to establish that, as a matter of law, Plaintiff’s misrepresentation as to pre-existing damage would warrant summary judgment as discussed below.

i. *A Misrepresentation Related to the Nature of the Property.*

As to the nature of the property, on the Policy application, the evidence shows that for the category “Units (Under 1 Roof),” Plaintiff put “Single Family.” (Def. Ex. 22.) Defendant argues this was a material misrepresentation because Plaintiff knew, at the time of submitting the application for the policy, that the Subject Property was not a single-family home. Defendant presents evidence that, during his interview with Defendant’s representative, after the claim was made, Plaintiff admitted the Subject Property used to be “a rehab center for youngsters,” with “a ballroom... multiple kitchens and, multiple living rooms.” (M. Burton Decl. ¶2; Def. Ex. 1.)

Plaintiff argues that there is still a triable issue of material fact as to whether this would be considered a material misrepresentation because there is also evidence that, despite these characteristics, the Subject Property was still classified as a single dwelling unit. Plaintiff presents evidence that the Subject Property was marketed, sold, and classified by San Bernardino County as a “Single Family Residence.” (I. Rizvi Decl. ¶12, Ex. C.) Indeed, it is one of Defendant’s undisputed facts that the Subject Property “consisted of three attached structures with approximately five, nine, and nine bedrooms, respectively—*all under one single roof.*” (UMF 12 (emphasis added).)

Based on the above the Court finds that a jury could find that since all three structures were “under one single roof,” that it was technically a “single dwelling unit” or a single-family residence, such that Plaintiff’s identification of the Subject Property was not a misrepresentation.

ii. *Misrepresentation as to the Quality of the Property.*

Next, Defendant argues that Plaintiff misrepresented the condition of the property in his Policy application. It is undisputed that “[i]n response to the Application question ‘Is there any

² Although Defendant also bring this motion pursuant to language contained in the Policy against fraud, the Court need not engage in contract interpretation given the statutory basis for Defendant’s argument.

unrepaired damage at this location[.]’ Plaintiff represented, ‘no.’” (UMF 20.) Defendant argues this was a material misrepresentation because the Subject Property, at the time of purchase, had significant damage requiring repairs, including roof damage and broken, boarded up windows, which Plaintiff knew about and misrepresented. Plaintiff and his supportive witnesses downplay the extent of the damages (i.e. Def. Ex. 5, Pl. Dep. Tr. at 106:13-17), including Plaintiff’s realtor stating that the broken windows and roof damage can be characterized not as “unrepaired damage,” but instead, “deferred maintenance.” (I. Rizvi Decl. ¶ 10.) While, ordinarily, this testimony might be enough to create an issue of material fact, Defendant also includes with its motion photographic evidence of the Subject Property. (Def. Ex. 13.) These pictures are not objected to by Plaintiff, and are identified as depicting the state of the Subject Property around the time of the purchase by Plaintiff. These pictures show extensive damage to the property, including: unstable floors; doors with large holes in them; windows broken and boarded up; and interior walls missing chunks of drywall. (*Ibid.*)

Defendant also references the testimony of Richard Gonzalez, who was the insurance broker who submitted the Policy application to Defendant on behalf of Plaintiff. (UMF 6.) Mr. Gonzalez testified that the damage depicted in the photographs would constitute “unrepaired damage,” that should have been identified in the policy application. (Def. Ex. 7, R. Gonzalez Tr. 92:4-17; 95:17-100:18.) Further, Plaintiff does not dispute that Defendant “views properties without unrepaired damage as presenting a lower risk than properties with unrepaired damage—in part because properties in poor condition encounter fire, trespassing, and vandalism at a higher rate, and in part because of the ‘moral hazard’ associated with over-insuring property in a deteriorated state. (UMF 35.)

There seems to be no dispute that Plaintiff made misrepresentations that would warrant Defendant’s rescission of the Policy, and that those misrepresentations were “material to the acceptance of the risk as a matter of law.” (*TIG Ins. Co. of Michigan v. Homestore, Inc.*, *supra*, 137 Cal.App.4th at 762.) Even though Plaintiff argues that Defendant should have inspected the Subject Property prior to insuring it, he provides no authority that such an inspection is required prior to an insurer being able to rescind a policy based on a material misrepresentation. Lastly, even if some of this damage occurred after the Policy was initiated, Plaintiff was obligated to update Defendant on the status of the Subject Property. (*See, e.g., Lunardi v. Great-West Life Assurance Co.* (1995) 37 Cal.App.4th 807, 820 (“Even if he did not receive a copy until delivery of the policy, he was obligated at that time to correct any misstatements or omissions in the representations”).)

The Court finds that Plaintiff made materially misrepresentations regarding the status of unrepaired damages, giving Defendant the ability to rescind the Policy as a matter of law. Therefore, the Court grants summary judgment as to all of Plaintiff’s claims. All of Plaintiff’s claims, including his Elder Abuse claim, are based on the harm Plaintiff alleges he suffered, based on Defendant’s failure to pay his claim under the Policy, and Defendant has a complete defense to them.

iii. Misrepresentations Made During Defendant’s Claim Investigation.

Lastly, Defendant argues Plaintiff also misrepresented that he had no prior involvement claiming fire damage, when he did. Any alleged misrepresentation related to Plaintiff’s previous experience with fire damage at one of his unrelated properties, however, cannot be the basis of summary judgment because it happened *after* Plaintiff applied for the insurance and in the investigation of the claim for the Subject Property. The authority Defendant has put forward regarding ability to rescind the Policy based on misrepresentation relates to misrepresentations in

the application process, not a misrepresentation made about an unrelated situation that happened *after* the application process.

Defendant also cites to specific language included in the Policy allowing it to rescind the policy based on fraud or misrepresentations that take place after a loss or claim. (Mem. at 3; Def. Ex. 23.) Plaintiff, however, creates a triable issue of fact as to whether such misrepresentations were intentional or fraudulent, given his cognitive disabilities. (Pl. Decl. ¶¶6-7, 27, 29.)

To argue that Plaintiff's misrepresentation during the investigation process commands summary judgment, Defendant cites in reply to *Cummings v. Fire Ins. Exch.* (1988) 202 Cal.App.3d 1407 (Reply at 9), but this case involved a plaintiff who filed a claim, but then in the investigation of that claim, lied and later admitted to lying about the details of the incident and the claim. (*Id.* at 1412-1413.) Here, the alleged lie Defendant relies on relates to an unrelated fire, not the fire that is subject to the at-issue claim, so *Cummings* is distinguishable.

The Court denies summary judgment based on the ground above.

RULING

The Court rules as follows:

- Overrules Defendant's evidentiary objections to the declaration of Dr. Johnny Wen;
- Overrules the objections to the declarations of Irfan Rizvi and Plaintiff;
- Denies both parties' request for judicial notice as unnecessary;
- Grants Defendant's motion for summary judgment, finding that Plaintiff materially misrepresented the status of damages to the property at the time he was attempting to obtain the Policy, giving Defendant, as a matter of law, the ability to rescind the Policy, which is the basis for all of Plaintiff's claims.

Primary Evidentiary Basis:

- a. Declaration of Irfan Rizvi and attached exhibits.
- b. Plaintiff's Declaration
- c. Declaration of Michelle Burton.
- d. Defendant's exhibits 1, 3, 5, 7, 13, 21-23.
- e. Undisputed Material Facts 6, 12, 20, 35.

Dated: August 24, 2026

Judge Nicole Quintana Winter